



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 7 1997

DOT-E 11768

EXPIRATION DATE: June 30, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Flotec, Incorporated, Indianapolis, Indiana
2. **PURPOSE AND LIMITATION:** This exemption authorizes the manufacture, marking and sale of certain hard-coat anodized and teflon impregnated aluminum valves which will be installed in DOT specification aluminum cylinders used for the transportation in commerce of oxygen, compressed. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.302(a)(4)(ii) and 173.302(a)(5)(i) in that the use of an aluminum valve is prohibited; the marking requirements of 49 CFR 172.203(a) and 172.301(c).
5. **BASIS:** This exemption is based on the application of Flotec, Incorporated dated August 2, 1996, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Oxygen, compressed	2.2	UN1072	N/A

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7. PACKAGING AND SAFETY CONTROL MEASURES: Packagings prescribed are DOT specification aluminum cylinders fitted with Flotec Incorporated's aluminum valve. Each valve must: be made of 6061-T6 aluminum alloy; be hard-coat anodized (oxide-ceramic) and teflon impregnated; and conform with Flotec Incorporated's drawing POSTVAL1 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The hard-coat must cover the entire surface exposed to oxygen and must be free of pits, scratches, tool marks or other defects that would expose aluminum to oxygen.
8. SPECIAL PROVISIONS:
 - a. Offerors may use the DOT specification aluminum cylinders fitted with the prescribed aluminum valve, for the shipment of oxygen, compressed, under the terms of this exemption, provided no modifications or changes are made to the cylinders and all terms of this exemption are complied with.
 - b. Flotec Incorporated's must supply a copy of the current exemption to each person who purchases the prescribed valve from Flotec Incorporated as part of a cylinder assembly or separately.
 - c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which the prescribed valve is manufactured and must be made available to a DOT representative upon request.
 - d. MARKING - The marking requirements of 49 CFR 172.203(a) and 172.301(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger aircraft.
10. MODAL REQUIREMENTS: No modal-specific requirements are required by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

JUL 7 1997


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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